

THE SUPREME COURT OF PAKISTAN

(Review Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR

MR. JUSTICE ISHTIAQ IBRAHIM

Mr. JUSTICE MIANGUL HASSAN AURANGZEB

Criminal Review Petition No.5 of 2024 in Crl.Appeal No.136-L of 2017

(Against the judgment dated 12.09.2019, passed by this Court in Criminal Appeal No.136-L of 2017)

Mushtaq Ahmed @ Muhammad Mushtaq

...Petitioner(s)

VERSUS

The State and another

...Respondent(s)

For the Petitioner(s): Mr. Sikandar Zulqarnain Saleem, ASC
(via video link from Lahore)

For the State: Mr. Tariq Siddique, APG, Punjab

Date of hearing: 30.03.2026

ORDER

ISHTIAQ IBRAHIM, J.- Through the instant petition, Mushtaq Ahmad (the petitioner) seeks review of the judgment dated 12.09.2019 passed by this Court in Criminal Appeal No.136-L of 2017, whereby, while partially allowing the appeal, the conviction of the petitioner under section 302(b), P.P.C. as well as under section 7(a) of the Anti-Terrorism Act, 1997 ("ATA"), as recorded by the Courts below, was maintained. However, the sentence of death awarded to the petitioner on three counts was commuted to imprisonment for life on each count. The convictions and sentences of the petitioner under sections 186, 353 and 324, P.P.C., along with section 21-L of the ATA, were also upheld, with the direction that all

sentences of imprisonment shall run concurrently. Benefit of section 382-B, Cr.P.C. was likewise extended to the petitioner.

2. Learned counsel for the petitioner contended that, while deciding the appeal, the settled principle of *audi alteram partem* was overlooked; that no evidence had been brought on record to bring the case within the ambit of “terrorism” as defined under section 6 of the ATA, particularly in view of the law laid down by the larger Bench of this Court in *Ghulam Hussain v. The State* (PLD 2020 SC 61). It was further contended that on the same set of evidence, which had been disbelieved qua the co-accused, the petitioner was convicted and sentenced. Lastly, it was argued that the prosecution had failed to prove its case through cogent and confidence-inspiring evidence, whereas the defence set up by the petitioner had been established through reliable material, but the same was not given due consideration; hence, the impugned judgment warrants review.

3. Conversely, learned Additional Prosecutor General, Punjab, appearing on behalf of the State, controverted the submissions advanced by learned counsel for the petitioner. He contended that the petitioner was afforded full and fair opportunity of hearing at the time of decision of the appeal; that the grounds now urged pertain to re-agitation of issues already decided and amount to re-opening a past and closed transaction, which is not permissible in review jurisdiction. He further submitted that the petition is hopelessly barred by 1598 days and is liable to be dismissed on this ground alone.

4. Having heard learned counsel for the parties and having perused the record, it is observed, at the very outset, that the instant review petition is hopelessly barred by 1598 days. Although an application for condonation of delay has been filed, yet the petitioner has failed to furnish a plausible explanation for each day’s delay as mandated under the law. On this score alone, the petition is liable to be dismissed. Even otherwise, on merits, the impugned judgment reflects that learned ASC, appeared on behalf of the petitioner at the time of hearing the appeal, and was afforded a full and fair

opportunity to advance his submissions, whereafter the appeal was decided. The contention of the learned counsel for the petitioner that the case does not fall within the ambit of terrorism is also misconceived. Perusal of the impugned judgment reveals that the petitioner is charged for the murder of two police officers and one constable, who, at the relevant time, were performing their official duties when they were fired at by the petitioner. This Court, in its judgment in Criminal Appeal No.22-K/2022 titled "*Riaz Hussain v. The State*", after an elaborate and exhaustive discussion, has held that where officials of law enforcement agencies are targeted not on account of personal vendetta, but by reason of their official functions, such acts transcend the sphere of private dispute and squarely fall within the mischief of the Anti-Terrorism Act, 1997. It was further held that premeditated attacks against law enforcement personnel, even if committed in the course of a private dispute or while carrying out another unlawful act, constitute a direct affront to the authority of the State and the administration of justice, thereby attracting the provisions relating to terrorism. The said judgment further clarifies that even where harm is inflicted upon a public official outside duty hours, if such harm is causally connected with acts performed in the discharge of official duties, the same would be deemed to arise out of their official capacity and would thus fall within the definition of terrorism. This refined exposition supplements, rather than unsettles, the law laid down in earlier judgment in *Ghulam Hussain's case (supra)*.

5. The matter in issue is comprehensively dealt with in the judgment under review, including all points now sought to be re-agitated. This Court has already extended considerable leniency to the petitioner by commuting the sentence of death to imprisonment for life, directing that all sentences of imprisonment shall run concurrently, and granting the benefit of section 382-B, Cr.P.C. to him. Entertaining the present petition would amount to re-opening the entire case on merits, which is not permissible within the narrow confines of review jurisdiction. It is well-settled that a review petition is maintainable only in circumstances where there

exists an error apparent on the face of the record, a clerical or arithmetical mistake, or where some new and important evidence has been discovered which, despite due diligence, could not be produced earlier. The petitioner has failed to point out any such error or omission in the impugned judgment.

6. Accordingly, this petition is dismissed.

Announced in open Court at Islamabad on 9th April 2026

Approved for Reporting
M.Siraj Afridi PS